

CONFIDENTIALITY AGREEMENT

In consideration of the mutual covenants and obligations in this Agreement, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, **EB-5 Healthcare Fund I MM, LLC** a CA limited liability company (the “Disclosing Party”), and _____, an individual (the “Recipient”) hereby agree as follows effective as of the ___ day of _____, 2025.

1. Confidential Information. As used herein, the term “Confidential Information” includes, without limitation, descriptions of the Disclosing Party’s strategic and business plans, the identity of one or more other parties with whom the Disclosing Party does business, descriptions of the Disclosing Party’s business operations, strategies, products and services, financial figures and projections, software, technical systems and product development methodologies, marketing and operational procedures, client lists, marketing techniques, channels of distribution, trade secrets, names of creditors or partners, price lists, pricing policies, models and other confidential and proprietary information relating to the business and operations of the Disclosing Party, whether any such information is or was disclosed by the Disclosing Party to Recipient, whether provided before or after the date of this Agreement, if at all, whether oral or written (including any analyses or compilations thereof), and regardless of the form of communication or the manner in which it is furnished.

2. Acknowledgment. Recipient hereby acknowledges, on its behalf as well as on behalf of its representatives (including officers, directors, employees and agents), that the Confidential Information is (i) to be used for viewing purposes only; and (ii) proprietary to the Disclosing Party and that any disclosure or unauthorized use thereof may cause irreparable harm and loss to the Disclosing Party.

3. Use of the Confidential Information. At all times hereafter, Recipient shall, and shall cause its shareholders, directors, employees, contractors, agents, affiliates and other representatives (i) to, hold all of the Confidential Information in strict confidence, and except as expressly set forth herein, will not disclose or reveal such Confidential Information to any third person(s) other than its representatives who need to receive such Confidential Information for the sole purpose of actively and directly participating in Recipient’s evaluation of a potential transaction or transactions with the Disclosing Party, including, without limitation, the Disclosing Party’s providing to the Recipient any and all offering or other documentation related to a private securities offering; and (ii) not circumvent, avoid, bypass, or obviate, directly or indirectly, the Disclosing Party and/or the intent of this Agreement. It is Recipient’s responsibility to ensure that any of its representatives that have access to the Confidential Information will, prior to being provided with any or all of the Confidential Information, agree to be bound by the terms of this Agreement. Recipient shall not use the Confidential Information in any respect to compete directly or indirectly with the Disclosing Party or any of its affiliates or subsidiaries at any time or provide such Confidential Information to a third person to compete directly or indirectly with the Disclosing Party. Recipient shall assume the liability for all damages, losses, costs, or expenses which result from (i) the use of the Confidential Information by Recipient or any of its representatives for any purpose other than providing services for or on behalf of the Disclosing Party; (ii) disclosure of the Confidential Information by Recipient or any of its representatives to third parties or entities; or (iii) the use of the Confidential Information by

any person or entity other than Recipient or any of its representatives, caused by the unauthorized disclosure or dissemination of same by any representatives of Recipient.

4. Return of Confidential Information. In the event that the Disclosing Party, in its sole discretion, so requests at any time, Recipient shall return to the Disclosing Party all of the Confidential Information, including all analyses and all copies thereof, in its possession or in the possession of any of its representatives.

5. Additional Agreements. Nothing contained in this Agreement or in any discussions undertaken or disclosures made pursuant hereto shall be deemed a commitment by the Disclosing Party to engage in any business relationship, contract or future dealing with Recipient. No patent, copyright, trademark or other proprietary right is licensed, granted or otherwise transferred directly, or by implication, estoppel or otherwise, by this Agreement or any disclosure hereunder, except for the right to use such information in accordance with this Agreement.

6. Remedies. Without prejudice to the rights and remedies otherwise available to the Disclosing Party, Recipient hereby agrees that the Disclosing Party shall be entitled to equitable relief by way of injunction or otherwise without the posting of any bond or other security if Recipient or any of its representatives breach or threaten to breach any of the provisions of this Agreement. Such remedies shall not be deemed to be the exclusive remedies for a breach of this Agreement and shall be in addition to all other remedies available at law or equity to the Disclosing Party. In the event of litigation relating to this Agreement, if a court of competent jurisdiction determines that Recipient or any of its representatives have breached any provision of this Agreement, then Recipient shall be liable and pay to the Disclosing Party all legal fees, including reasonable attorneys' fees, court costs and other expenses incurred by it in connection with such litigation, including any appeal therefrom.

7. Indemnification. Recipient agrees to indemnify and hold the Disclosing Party harmless from and against any and all damages, loss, cost, or liability (including, without limitation, legal fees and the cost of enforcing this Agreement, whether prior to, during or after trial, on appeal or in bankruptcy proceedings) arising out of or resulting from any unauthorized use or disclosure by the indemnifying party or its representatives of the Confidential Information or other violation of this Agreement.

8. Miscellaneous. It is understood and agreed that no failure or delay by the Disclosing Party in exercising any right, power or privilege hereunder shall operate as a waiver thereof. This Agreement may not be assigned by either party without the prior written consent of the other. No permitted assignment shall relieve the Recipient of its obligations hereunder with respect to Confidential Information disclosed hereunder prior to the assignment. Any assignment in violation of this Section shall be void. This Agreement shall be binding upon the parties and their respective successors and permitted assigns. The provisions of this Agreement may not be modified, amended or waived, except by a written instrument duly executed by both parties. This Agreement represents the entire understanding between the parties with respect to the subject matter hereof and supersedes all prior communications, agreements and understandings relating hereto. Each party warrants that this Agreement has been duly authorized, executed and

delivered by an authorized officer or representative of such party and is enforceable in accordance with its terms. This Agreement shall be governed in all respects by the laws of the State of California without regard for conflict of laws principles. Any legal action arising from the enforcement of this Agreement, or because of an alleged dispute, breach, default, or misrepresentation in connection with any of the provisions of this Agreement, shall be brought in courts of competent jurisdiction located in Los Angeles County, CA.

[Signatures appear on the following page.]

IN WITNESS WHEREOF, the parties have executed this Confidentiality Agreement effective as of the date first written above.

DISCLOSING PARTY:

EB-5 Healthcare Fund I MM, LLC

By:

Name: Steve Shpilsky

Title: Managing Member

RECIPIENT:

By: _____

Name: _____

Title: _____